

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
IAN HENRY,

Index No.

Plaintiff(s),

SUMMONS

against

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER VINCENT
GAMBINO and JOHN DOES-Police Officers as yet
identified,Basis of Venue:
Is the Locus of OccurrenceDefendant(s).
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

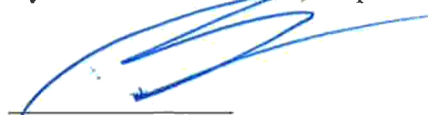
Plaintiff's address is: 1804 St. Johns Place, Apt. 2, Brooklyn, NY 11233. The county of the locus of the occurrence is Kings County, New York.

Dated: New York, New York
August 3, 2021

Yours, etc.

HACH & ROSE, LLP
Attorneys for Plaintiff(s)
IAN HENRY
112 Madison Avenue, 10th Floor
New York, NY 10016
T. 212.779.0057
F. 212.779-0028

By: Halina Radchenko, Esq.



To: CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path
New York, NY 10038

POLICE OFFICER VINCENT GAMBINO
100 Church Street
New York, NY 10007

POLICE OFFICER VINCENT GAMBINO
79th Precinct
263 Tompkins Avenue
Brooklyn, New York 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
IAN HENRY,

Index No.

Plaintiff(s),

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER VINCENT
GAMBINO and JOHN DOES-Police Officers as yet
identified,

Defendant(s).

-----X
Plaintiff, by his attorneys, HACH & ROSE, L.L.P., complaining of the defendant(s) herein,
respectfully shows to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. The Plaintiff brings this action for compensatory damages and attorney's fees for wrongful acts of Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER VINCENT GAMBINO and JOHN DOES-POLICE OFFICERS (names as yet unidentified) as Officers of the New York City Police Department, all acting under color of state law and pursuant to their authority, for their actions including but not limited to the false arrest, malicious prosecution, assault and use of excessive force against Plaintiff in violation of Plaintiff's rights as said rights are secured by statutes and the Constitution of the State of New York and the Constitution of the United States, specifically 42 U.S.C. §§ 1983 and 1988.
2. This action is brought to recover compensatory damages against defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, compensatory damages as well as punitive damages against the defendants POLICE OFFICER VINCENT GAMBINO and JOHN DOES-POLICE OFFICERS (names as yet unidentified) for committing acts under the color of law which deprived the plaintiff IAN HENRY of rights secured by the Constitution and laws of the United States and State of New York and for assault, battery and personal injury.
3. That plaintiff served a verified Notice of Claim setting forth the time when, the place where, and the manner in which the claim arose, upon the defendants as required by General Municipal Law §50 and Public Authorities Law §1276 on or about November 7, 2017.
4. At least 30 days have elapsed since the service of the notice of said demand and adjustment or payment thereof has been neglected and/or refused.

5. That a hearing pursuant to General Municipal Law Section 50-H has not been held, but has been scheduled.
6. That this action is being commenced within one year and ninety days after the occurrence herein.

THE PARTIES

7. On or about August 3, 2020, and at all times herein mentioned, the Plaintiff, IAN HENRY, was and still is a resident of the County of Kings, State of New York;
8. This action falls within one or more of the exceptions set forth in CPLR Section 1602;
9. The cause of action herein arose in the County of Kings, State of New York;
10. At all times relevant hereto, defendant THE CITY OF NEW YORK (hereinafter, "CITY") is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs the other named Defendants and JOHN DOES-Police Officers.
11. At all times mentioned, herein Defendant CITY operated, maintained, managed and controlled the Police Department of the City of New York (hereinafter, NYPD), and was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, lieutenants and/or employees of the NYPD.
12. At all times relevant to this action, defendants P.O. VINCENT GAMBINO (hereinafter, "P.O. GAMBINO") and JOHN DOES -POLICE OFFIERS (as yet identified) are and were police officers employed by the NYPD, and acting under the color of state law. The police officers are being sued in both their individual and official capacities.
13. At all times relevant hereto and in all their actions described herein, said Defendants were acting under color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents and police officers.
14. That the CITY was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, and/or employees of the NYPD.

STATEMENT OF FACT

15. That on August 3, 2020, at approximately 4:45 PM the Plaintiff Ian Henry was lawfully present in front of the building premises known and designated as 45 Lott Avenue, in the County of Brooklyn, State of New York.
16. On the above-mentioned date and time Defendants JOHN DOES-Police Officers (as yet to be identified) approached the subject motor vehicle with their weapons drawn.

17. On the above-mentioned date and time, the Plaintiff IAN HERNY stepped out of his motor vehicle with his hands visible and in the air, identified himself as a Correctional Officer employed by the Department of Probation who was currently on duty, and informed the Defendants JOHN DOES-Police Officers (as yet to be identified) that he has an unloaded registered weapon in his motor vehicle.

18. Upon information and belief, one of the Police Officers who approached the Plaintiff IAN HENRY at the above-mentioned place and time was P.O. GAMBINO.

19. At the above-mentioned place and time, suddenly and without warning, Defendant P.O. GAMBINO and JOHN DOES-Police Officers (as yet to be identified) tackled the Plaintiff onto the ground forcefully, they kicked him and restrained him and used excessive force to throw him into the back of a Police Department vehicle. They then transported him to the 73rd Precinct.

20. Upon arrival at the 73rd Precinct the Plaintiff, IAN HENRY fainted as a result of the injuries he sustained during the initial encounter with Defendant P.O. GAMBINO and JOHN DOES-Police Officers (as yet to be identified).

21. After the Plaintiff IAN HENRY fainted, he was transported to Downtown Brooklyn Hospital where he was diagnosed with a concussion.

22. After the receipt of medical treatment at Downtown Brooklyn Hospital, the Plaintiff IAN HENRY was released into the custody of Defendants JOHN DOES-Police Officers (as yet to be identified). Defendants JOHN DOES-Police Officers (as yet to be identified) used excessive force when placing the Plaintiff into the Police Vehicle to transport him back to the 73rd Precinct. As a result of the excessive force used while placing him into the vehicle, the Plaintiff IAN HENRY sustained further injury to his wrists, shoulder, and cervical spine.

23. Plaintiff IAN HENRY was then arraigned and released on August 5, 2020. The criminal matter is currently pending in Kings County under case number CR-014745-20KN

24. That on or about August 7, 2020 at approximately 7:00 am, the Plaintiff IAN HENRY was lawfully present at the 73rd Precinct, 140 East New York Avenue, Brooklyn NY in order to retrieve the motor vehicle which he was operating on August 3, 2020.

25. While lawfully present at the 73rd Precinct, the Plaintiff was wrongfully arrested, he was thrown onto the ground by Defendants JOHN DOES-Police Officers. He was punched and kicked by the Defendant JOHN DOES-Police Officers. Defendant JOHN DOES-Police Officers placed handcuffs on him in such a manner that the Plaintiff sustained lacerations of his wrists.

26. The Plaintiff was arraigned and released as a result of the August 7, 2020 incident. The criminal matter associated with this incident is pending in the Kings County Criminal Court under case number CR-014968-20KN.

27. That Defendant CITY, its agents, servants and/or employees, was negligent in failing to properly and adequately hire, train and instruct its police officers in the use of force during their daily activities, including conducting investigations and making arrests.

28. Plaintiff was unlawfully and forcibly arrested, subjected to excessive force and was injured due to the negligence, carelessness, recklessness, and/or intentional conduct of the Defendant CITY, by its agents, servants and/or employees, and more particularly, members of the NYPD.

AS AND FOR A FIRST CAUSE OF ACTION:
FALSE ARREST & IMPRISONMENT

29. That the Plaintiff was unlawfully detained, arrested and imprisoned by agents, servants and/or employees of Defendant CITY, including Defendants P.O. GAMBINO and Defendants JOHN DOES-Police Officers.

30. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.

31. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege or consent.

32. At the time of her unlawful arrest and imprisonment, Plaintiff had not committed nor attempted to commit any illegal act.

33. At the time of Plaintiff's unlawful arrest and imprisonment, the Defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment were false and not supported by probable cause.

34. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal allegations against Plaintiff.

35. The aforesaid incident, false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear and humiliation, loss of freedom, legal expenses and damage to her reputation.

36. By reason of the foregoing, the Defendants are liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION

37. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "36" of the complaint as if fully set forth herein.

38. That the Defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against Plaintiff without probable cause; and that said prosecution terminated in favor of the Plaintiff.

39. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

40. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

41. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

42. Defendants lacked probable cause to continue criminal proceedings against Plaintiff. Defendants acted with malice in continuing criminal proceedings against Plaintiff.

43. The criminal proceedings are still pending, upon information and belief the criminal proceedings will be terminated in favor of the Plaintiff.

44. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continues to suffer severe emotional and psychological distress, anguish, anxiety, fear and humiliation, legal expenses and damage to her reputation.

45. By reason of the foregoing, the Defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION:
ASSAULT and FAILURE TO INTERVENE

46. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "45" of the complaint as if fully set forth herein.

47. That during the aforementioned arrest, Defendants, specifically P.O. GAMBINO and JOHN DOES-Police Officers, did intentionally, wantonly, brutally and maliciously assault and batter Plaintiff without cause, provocation or justification.

48. The aforesaid assault was carried out solely to inflict physical and mental harm upon Plaintiff.

49. At all times mentioned herein, Defendants P.O. GAMBINO and JOHN DOES- Police Officers, and other agents, servants and/or employees of Defendant CITY, were acting within the scope of their employment, under the color of authority, and in furtherance of their employer's interest.

50. That during the aforementioned assault and battery of the Plaintiff, other Defendants did witness said intentional, wanton, brutal and malicious assault and battery of Plaintiff and failed

to intervene or otherwise attempt to stop the assault and instead stood by with complicity and allowed Plaintiff to be beaten.

51. As a result, Plaintiff was injured, internally and externally, became sick, sore, lame and disabled, and was caused to suffer and still suffers severe and permanent injuries, including fractured bones and lost teeth, and will continue to suffer pain and discomfort; and was caused to obtain continued medical care in an attempt to treat the aforesaid injuries.

52. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION:
EXCESSIVE FORCE

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" through "52" with the same force and effect as if fully set forth herein.

54. The degree of force used by Defendants in effecting the arrest of Plaintiff was excessive, unreasonable and unwarranted.

55. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable and unprovoked.

56. As a result of the excessive force and brutality, Plaintiff sustained significant injuries including fractured facial bones, substantial pain, bruising and swelling about his body, requiring medical treatment.

57. All of the aforementioned acts of Defendants constituted excessive force under the laws of the State of New York and they are liable for said damage.

58. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

59. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "58" of the complaint as if fully set forth herein.

60. The aforementioned actions of Defendants were outrageous, malicious, shocking and exceeded all reasonable bounds of decency tolerated by the public community.

61. Defendants acted with the intent to cause Plaintiff emotional distress and/or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

62. Defendants acted with utter disregard of the consequences of their actions. As a result, Plaintiff was caused to suffer the intentional infliction of emotional distress.

63. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION:
DEPRIVATION OF CIVIL RIGHTS

64. The Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "63" of the complaint as if fully set forth herein.

65. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law.

66. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

67. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

68. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

69. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his respective municipality/authority, which is forbidden by the Constitution of the United States.

70. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually liable.

71. As a result, the Defendants are liable to the Plaintiff in a sum of money, which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION:
CONSPIRACY TO VIOLATE CIVIL RIGHTS

72. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "71" of the complaint as if fully set forth herein.

73. All of the aforementioned Defendants conspired to violate Plaintiff's civil rights by agreeing among themselves to falsely charge Plaintiff with crimes and falsely provide misleading

reports to the District Attorney, as described above, in violation State and United States Constitutions and 42 U.S.C. § 1985, for which the Defendants are individually liable.

74. As a result, the Defendants are liable to the Plaintiff in a sum of money, which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A EIGHTH CAUSE OF ACTION
NEGLIGENT SUPERVISION, HIRING and RETENTION

75. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "74" of the complaint as if fully set forth herein.

76. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently trained or failed to train its agents, servants, or employees, including Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified).

77. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently supervised or failed to supervise its agents, servants, or employees, including Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified).

78. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently disciplined or failed to discipline its agents, servants, or employees, including Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified).

79. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, including Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified), who Defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their positions.

80. As a result of the negligence of Defendant CITY and the acts of Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified), Plaintiff was caused to suffer severe and permanent personal injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses, and damage to his reputation.

81. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION:
MUNICIPAL LIABILITY

82. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "81" of the complaint as if fully set forth herein.

83. Defendants arrested Plaintiff despite a complete lack of evidence against him, notwithstanding their knowledge that said arrest would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

84. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with the entire actual and/or apparent authority attendant thereto.

85. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of CITY and the NYPD, all under the supervision of ranking officers of said department.

86. The aforementioned customs, policies, usages, practices, procedures and rules of NYC and the NYPD included, but were no limited to, making arrests and initiating and continuing criminal proceedings without evidence of criminal activity.

87. The foregoing customs, policies, usages, practices, procedures and rules of CITY and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

88. Specifically, the customs, policies, usages, practices, procedures and rules of the CITY and NYPD included, but were no limited to, the following unconstitutional practices:

- a. Failing to properly train as to the protocols in conducting criminal investigations, particularly those involving nonviolent traffic violations;
- b. Failing to properly train officers as to how to treat citizens, particularly those who charged with common traffic violations;
- c. Failing to instruct and/or train officers in the use of force when affecting an arrest of a citizen for a common traffic violation ;
- d. Failing to instruct and/or train officers to intercede if a fellow officer is using excessive force on a citizen during the investigation of a common traffic violation;
- e. Failing to properly train and/or discipline officers who have previously displayed an aggressive or violent disposition;
- f. Failing to instruct and/or train officers to report a fellow officer who has used excessive force and/or previously displayed an aggressive or violent disposition.

89. That the CITY knew about the unlawful and improper predispositions of Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified); that nevertheless the CITY consciously disregarded the risk of harm to Plaintiff and other citizens in her position that was posed and/or created by said police officers.

90. That in so doing, the CITY exhibited a deliberate indifference to the health, safety and welfare of the Plaintiff.

91. That the CITY knew with a moral certainty that Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified), would need to interact with civilians during the investigation of criminal and traffic violations. That the CITY further knew with a moral certainty Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified) had previously displayed and demonstrated violent, aggressive and/inappropriate demeanors that put the CITY on notice that said Defendants may act in an improper manner when dealing with civilians.

92. Nevertheless, the CITY was deliberately indifferent to the needs of those citizens, like the Plaintiff, and failed to properly train and/or supervise said officers; it was clear and foreseeable to the CITY that this failure to properly train police officers, like the individual defendants, would frequently cause the deprivation of a citizen's rights, and thus, the failure to properly train demonstrates a deliberate indifference to the needs of the citizens, such as the Plaintiff.

93. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.

94. Defendant CITY, as municipal policymaker in the training and supervision of Defendant police officers, pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violation of their right to freedom from the use of excessive and unreasonable force and freedom from deprivation of Liberty without Due Process of law in violation of the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

AS AND FOR A TENTH CAUSE OF ACTION:
PUNITIVE DAMAGES

95. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "94" of the complaint as if fully set forth herein.

96. The actions of the Defendants herein-above alleged, were malicious, willful and grossly negligent.

97. The Defendant CITY and NYPD, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to Defendants P.O. GAMBINO and JOHN DOES-Police Officers(as yet to be identified), herein above alleged.

98. By reason of the foregoing, the Plaintiff IAN HENRY sustained damage in the amount exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the First cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Second cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Third cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eighth cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Ninth cause of action; Plaintiff IAN HENRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Tenth cause of action;

Dated: New York, New York
August 9, 2021

Yours, etc.,



Halina Radchenko
Hach & Rose, LLP
Attorneys for Plaintiff(s)
112 Madison Avenue, 10th Floor
New York, NY 10016
(212)779-0057

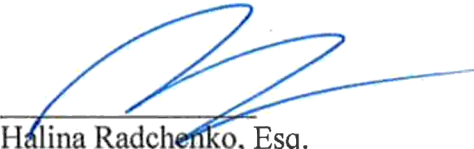
STATE OF NEW YORK }
 }
 } ss.
COUNTY OF NEW YORK }

Halina Radchenko, being duly sworn, deposes and says:

That deponent is a member with HACH & ROSE, L.L.P., attorneys for Plaintiff, IAN HENRY in the within action; that the deponent has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponents knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes it to be true and the reasons that this verification is not made by the Plaintiff and is made by deponent is that Plaintiff does not reside in the county where the attorney for the Plaintiff have their office.

Deponent further says that the source of deponent's information and the grounds of deponent's beliefs as to all matters not stated upon deponent's knowledge are from investigation made on behalf of Plaintiff.

DATED: New York, New York
 August 9, 2021



Halina Radchenko, Esq.
HACH & ROSE, LLP
112 Madison Avenue, 10th Floor
New York, NY 10016
(212) 779-0057

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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IAN HENRY,

Index No.

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER VINCENT
GAMBINO and JOHN DOES-Police Officers as yet
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Defendant(s).

-----X
**NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING**

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is being served as required by Subdivision (b) (3) of that Section.

The New York State Courts Electronic: Filing System ("NYSCEF") is designed for the electronic filing of documents with the County Clerk and the court and for the electronic service of those documents, court documents, and court notices upon counsel and self-represented parties. Counsel and/or parties who do not notify the court of a claimed exemption (see below) as required by Section 202.5-bb(e) must immediately record their representation within the e-filed matter on the Consent page in NYSCEF. Failure to do so may result in an inability to receive electronic notice of document filings.

Exemptions from mandatory e-filing are limited to: 1) attorneys who certify in good faith that they lack the computer equipment and (along with all employees) the requisite knowledge to comply; and 2) self-represented parties who choose not to participate in e-filing. For additional information about electronic filing, including access to Section 202.5-bb, consult the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@couns.state.ny.us.

Dated: New York, New York
August 9, 2021

Michael A. Rose
HACH & ROSE, LLP
Attorney for Plaintiff(s)
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

IAN HENRY,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
VINCENT GAMBINO and JOHN DOES-Police Officers as yet identified,,

Defendant(s).

SUMMONS AND COMPLAINT

HACH & ROSE, LLP

Attorneys for Plaintiff(s)

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